

support of motion and proposed order, and file proof of service of these moving papers on or before June 12, 2026.

9. 9:00 AM CASE NUMBER: C25-01418

CASE NAME: LAUREL EVANS VS. ABE WORTMAN

HEARING ON ORDER TO SHOW CAUSE IN RE: COUNSEL: MICHAEL A. DUBLIN, SET BY THE COURTROOM WHY MONTEARY SANCTIONS UP TO \$1,000.00 SHOULD NOT BE IMPOSED
FILED BY:

TENTATIVE RULING:

NOTICE: This decision contains fabricated quotations in the original text of the opinion. They are relevant to the decision and therefore have not been editorially corrected.

On February 13, 2026, the court heard and issued a ruling on a demurrer in this matter. On March 9, 2026, the court on its own motion issued an order to Michael A. Dubin, counsel for Plaintiff, to appear on Friday, March 27, 2026 at 9:00 a.m. in Department 32 (remote appearance is acceptable) and show cause if cause there be, why monetary sanctions of up to \$1000 should not be imposed; why counsel should not be directed to serve a copy of the court's order to show cause describing problems with cases cited to the court to his client; and why the clerk of the court should not similarly be directed to serve a copy of the final order on this OSC to the State Bar, for submitting non-existent and misleading legal citations to the court in Plaintiff's Opposition to Defendant's Demurrer filed on February 2, 2026 in this lawsuit. The court has read and considered Counsel Dubin's five-page declaration, submitted in response to the OSC.

Reasons for the OSC: false and misleading citations to the Court

In Plaintiff's Opposition to the Demurrer at page two, Plaintiff referenced "*Besser v. Walsh* (1990) 222 Cal.App.3d 619, 624," for the proposition that this issue is a fact intensive inquiry and "not readily susceptible to determination on demurrer." The court notes that it was unable to locate the *Besser* citation as an actual case.

After its citation to *Besser*, Plaintiff continued, "Even conclusory alter ego allegations are sufficient to survive demurrer if they give notice of the theory of liability. (*Doe v. Unocal Corp.* (2000) 27 Cal.4th 1099, 1109; *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.)" (Opposition, page two.)

The Court was similarly unable to locate the *Unocal* citation. The court also notes that the opinion in *Leek* case does not stand for the stated proposition. The Court in *Leek* held that the allegations of alter ego liability were *insufficiently* plead.

Rule 3.3 of California Professional Rules of Conduct, "Candor to the Tribunal," provides in pertinent part:

(a) A lawyer shall not:

(1) knowingly* make a false statement of fact or law to a tribunal* ...

Business and Professions Code § 6068(d) states,

“It is the duty of an attorney to do all of the following: ...

(d) To employ, for the purpose of maintaining the causes confided to him or her those means only as are consistent with truth, and never to seek to mislead the judge or any judicial officer by an artifice or false statement of fact or law.

The Court notes also that Plaintiff’s citation to *Zoran Corp. v. Chen* (2010) 185 Cal. App. 4th 799, 811, for the proposition that “Courts routinely sustain alter ego allegations where, as here, plaintiffs plead specific facts showing domination, misuse of corporate funds, and inequitable conduct,” is unavailing because (1) that case was in the context of a summary judgment motion, and (2) the court at page 811 is merely listing factors that may constitute indication of alter ego liability. Citing the *Zoran* case for a proposition it did not support was problematic, especially in the context of citing two other cases that were found to be non-existent.

In *Noland v. Land of the Free, L.P.* (2025) 114 Cal. App. 5th 426, a unanimous panel of the Court of Appeal for the Second Appellate District held,

[R]elying on fabricated legal authority is sanctionable. As a district judge recently held when presented with nonexistent precedent generated by ChatGPT: “A fake opinion is not ‘existing law’ and citation to a fake opinion does not provide a non-frivolous ground for extending, modifying, or reversing existing law, or for establishing new law. An attempt to persuade a court or oppose an adversary by relying on fake opinions is an abuse of the adversary system.” (citations omitted) *Noland, supra*, 114 Cal. App. 5th at 445.

The court has no direct evidence that counsel for Plaintiff used artificial intelligence (AI) to write the section of this brief at issue. But the citations to *Besser* and *Unocal* appear to be fabricated (that is, made up, non-existent), and counsel submitted them to the court. It is unclear whether counsel submitted them knowing they were non-existent, or counsel simply did not read the citations before submitting them. **Even the latter is problematic.** As the *Noland* court explained,

To state the obvious, it is a fundamental duty of attorneys to *read* the legal authorities they cite in appellate briefs or any other court filings to determine that the authorities stand for the propositions for which they are cited. Plainly, counsel did not read the cases he cited before filing his appellate briefs: Had he read them, he would have discovered, as we did, that the cases did not contain the language he purported to quote, did not support the propositions for which they were cited, or did not exist. (See *Benjamin v. Costco Wholesale Corp., supra*, 779

F.Supp.3d at p. 343 [“an attorney who submits fake cases clearly has not read those nonexistent cases, which is a violation of [the federal equivalent of § 128.7]”; ... Counsel thus fundamentally abdicated his responsibility to the court and to his client. (See *Kleveland v. Siegel & Wolensky, LLP* (2013) 215 Cal.App.4th 534, 559 [“It is critical to both the bench and the bar that we be able to rely on the honesty of counsel. The term “officer of the court,” with all the assumptions of honor and integrity that append to it, must not be allowed to lose its significance”].) (Emphasis in original, citation omitted.) *Noland, supra*, 114 Cal. App. 5th at 445.

In *Noland*, the court found that “nearly all” of the legal quotations in the plaintiff’s opening brief, and “many” of the quotations in the reply brief were fabricated. *Noland, supra*, 114 Cal. App. 5th at 430. In addition, “many of the cases plaintiff cites do not discuss the topics for which they were cited.” *Id.*, at 430.

The *Noland* court concluded, “Sanctions may be awarded to the respondent to compensate for the costs of responding to a frivolous appeal, or to the clerk of the court for conduct that unnecessarily burdens the court and the taxpayers.” *Nolan, supra*, 114 Cal. App. 5th at 447. Counsel in the Nolan case was sanctioned \$10,000 payable to the court, the attorney was directed to serve a copy of the court’s order on his client and the clerk of the court was directed to serve a copy of the court’s opinion on the State Bar.

Counsel’s Response to the OSC

Counsel Dubin admits he used AI in writing the opposition, admits the *Besser* and *Unocal* citations do not exist and are not valid authorities, and concedes that he “misapplied” the *Leek* and *Zoran Corp.* cases. He acknowledges that he remains solely responsible for the contents of the filing, including all citations, under the case law and rules of professional responsibility. To his credit, he calls this result “a serious mistake,” is embarrassed by it, and offer his sincere apology to the Court. Counsel Dubin has reviewed the *Noland v. Land of the Free, L.P.* (2025) 114 Cal. App. 5th 426 case and attests that he understands the seriousness of relying on inaccurate or non-existent authority and the requirement that he is responsible for independently verifying all citations before presenting them to the Court.

Counsel Dubin states that he has used AI in his legal practice in the past, and found it to be generally “efficient, time and cost saving for the clients, and helpful.” He acknowledges that he has identified and corrected numerous errors generated by these tools in the past, and understood they require “careful attorney oversight.” He states that this is the first time he has encountered entirely fabricated, *i.e.*, hallucinated, citations.

Counsel Dubin offers that this incident has heightened his awareness of these issues and represents that he has changed his use of this technology. He offers citations to other authorities in support of the argument he made in opposing the demurrer, and acknowledges that the Court independently evaluated the alter ego allegations and applied the correct legal standards (despite his submission of fabricated and misapplied citations).

Counsel Dubin offers that he had no intent to mislead the Court in any respect, and that this was not “deliberate conduct.”

Counsel Dubin has been practicing law since 1992, for over 30 years. He attests that he has never been sanctioned by any court and has not been subject to any disciplinary action. He states that he has consistently sought to uphold his duties as an officer of the court. He has served in fiduciary roles, including as *guardian ad litem* in probate court. He takes seriously his obligations of candor, diligence and professionalism. He offers that this is not reflective of his usual practice. He requests that the sanction be limited to monetary only and that no referral be made to the State Bar.

Ruling

Candor to the court is the most basic duty of an attorney. Although he claims never to have encountered a completely hallucinated citation in his past usage of AI, Counsel Dubin had an ethical duty to check for and correct problems with AI generated research and was on notice, when he employed it in this case, that it had the potential to produce fabricated results. He is not specific about what exact changes he is making in his use of this technology, but the basic and most appropriate solution--Shepardizing all cases cited before one submits them to the court--is a technique taught to all first year law school students. Indeed, even attempting to enter these problematic citations into a legal database would have indicated to Counsel Dubin that the hallucinated citations didn't exist. Merely reading the extant but “misapplied” citations would have indicated to Counsel Dubin within a matter of minutes that they did not stand for the proposition for which he proffered them.

Counsel argues this was not “deliberate” conduct. The court disagrees. While the court accepts Counsel Dubin's representation that he did not knowingly submit hallucinated or misrepresented citations to the court, the fact remains that he knowingly submitted the results of an AI search to the court without verifying the integrity of the results. The court finds that the mere submission of AI research without verifying the validity of the results is an ethical violation of an attorney's duty under Business and Professions Code § 6068(d) for it represents recklessness, *i.e.*, a conscious disregard of the risk of misleading the court. Counsel Dubin was on notice of problems with the results of AI generated research, but failed to confirm the integrity of his research when he submitted those hallucinated results to the court. He deliberately obtained potentially false citations and submitted unverified case citations to the court.

The fact that the court independently caught this problem and did not rely upon it in rendering its decision does not mitigate Counsel's conduct. Although opposing counsel's reply to plaintiff's Opposition was vigorous, it did not catch the fabricated and misleading citations. That these errors slipped past opposing counsel's review further underscores the insidious nature of the threat posed to the integrity of the legal profession and to the rule of law by the use of unverified AI. In its decision published in September of 2025, the *Noland* court noted,

In the past two years, many courts have confronted briefs populated with fraudulent legal citations resulting from attorneys' reliance on generative AI. ... Another court referenced a case citation that “has all the markings of a hallucinated case created by generative

artificial intelligence (AI) tools such as ChatGPT and Google Bard that have been widely discussed by courts grappling with fictitious legal citations and reported by national news outlets.” (*United States v. Hayes* (E.D. Cal. 2025) 763 F.Supp.3d 1054, 1065 (*Hayes*).) And yet another noted a plaintiff’s “false citations” that “appear to be hallmarks of an artificial intelligence (‘AI’) tool,” observing that “[i]t is now well known that AI tools ‘hallucinate’ fake cases.” (*Schoene v. Oregon Department of Human Services* (D.Or., July 18, 2025, No. 3:23-cv-742-SI) 2025 WL 2021654 (*Schoene*); see also *Hall v. Academy Charter School* [“The appearance of hallucinated citations in briefs generated from AI is no longer in its nascent stage. Regrettably, the number and regularity with which courts have been faced with hallucinations in court filings continues to rise”].)

Noland, supra, 114 Cal. App. 5th at 444.

Regrettably, this is not an obscure phenomenon. It is a growing and pernicious problem.

The *Noland* court imposed monetary sanctions against the offending counsel to be paid to the court rather than to the opposing counsel because in that case the opposing counsel did not alert the court to the fabricated citations. *Noland, supra*, 114 Cal. App. 5th at 448. The court finds that approach to be appropriate here, for the same reason. The court had to spend unnecessary hours discovering and analyzing the false citations, and in additional analysis of the arguments regarding the demurrer. The court orders Counsel Dubin to pay the \$1000 monetary sanction to the Superior Court within 30 days.

Counsel asks the court to limit its order to the imposition of monetary sanctions and points to his decades of discipline free practice as an attorney and his service in fiduciary roles. He asks that no referral be made to the State Bar.

Citation of falsified authority undermines the integrity of and threatens the foundation of the legal system. Canon 3D(2) provides:

Whenever a judge has personal knowledge, or concludes in a judicial decision, that a lawyer has committed misconduct or has violated any provision of the Rules of Professional Conduct, the judge shall take appropriate corrective action, which may include reporting the violation to the appropriate authority.

An attorney with years of discipline free practice of the law should be a shining example of integrity. As the court wrote in *Kleveland v. Siegel & Wolensky, LLP* (2013) 215 Cal. App. 4th, 534, 559, “It is critical to both the bench and the bar that we be able to rely on the honesty of counsel. The term “officer of the court,” with all the assumptions of honor and integrity that append to it, must not be allowed to lose its significance.” This court stands with its colleagues in *Noland v. Land of the Free, L.P.* (2025) 114 Cal. App. 5th 426, 449, in *Schlichter v. Kennedy* (2025) 116 Cal. App. 5th, 24, 34, and in *People v. Alvarez* (2025) 114 Cal. App. 5th 1115, 1119 (submission of non-existent authority in pleadings by a public defender), in making a referral to the State Bar under these circumstances. Pursuant to Business and Professions Code § 6086.7(a)(3), the clerk of the court is ordered to forward a copy of this opinion to the State Bar.